

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 27, 2026
8:30 AM/1:30 PM

5. ANNE MCNELIS V. FERRIS NUESMEYER

PFL20160411

On June 5, 2026, Petitioner filed a Request for Order (RFO) seeking orders regarding Respondent's failure to comply with discovery. She concurrently filed a declaration of Samuel H. Park in support of her RFO and her Income and Expense Declaration. All required documents were served by mail on June 9th.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure "as an admission that the motion or other application is meritorious." El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. He had notice of the pending requests and chose not to file an opposition. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Petitioner is requesting an order compelling Respondent to respond to Request for Production of Documents (Set One) within 10 days of the date of the hearing. She further requests monetary sanctions in the amount of \$997.25 pursuant to Civil Procedure §§ 2031.300(c), 2023.030, and 2023.010(d). She asks that the court set a review hearing and reserve on the issue of additional sanctions pending the review hearing.

According to Petitioner, on March 9, 2026, she served a Request for Production of Documents (Set One) on Respondent thereby making responses due no later than April 13, 2026. As of the date of preparing the RFO, Respondent still had yet to serve responses to the subject discovery.

The Civil Discovery Act authorizes all parties to request documents from the opposing party by way of a Request for Production of Documents. "Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve..." responses thereto. Cal. Civ. Pro. §2031.260. Where a party fails to provide timely responses, the party to whom the discovery was directed waives "any objection...including one based on privilege or on the protection of work product..." Cal Civ. Pro. §2031.300(a).

Here, Petitioner has established proper service of Request for Production of Documents (Set One). She has further established Respondent's failure to timely serve code compliant responses. As such, the court finds an order compelling him to comply is warranted and Petitioner's request is granted. Respondent is ordered to serve full and

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complete verified responses to Request for Production of Documents (Set One), without objections, no later than September 7, 2026.

Regarding the request for monetary sanctions, where the court finds misuse of the discovery process, the imposition of discovery sanctions is permissive. See Cal. Civ. Pro. § 2023.030 (“[t]he court *may* impose a monetary sanction...” for misuse of the discovery process). Conduct subject to discretionary sanctions includes, but is not limited to, “[f]ailing to respond or submit to an authorized method of discovery.” Cal. Civ. Pro. § 2023.010(d).

Requests for production of documents are an authorized form of discovery as stated in the Civil Discovery Act. By failing to serve responses to the requests, Respondent has engaged in a misuse of the discovery process. Accordingly, the court finds sanctions to be warranted under the circumstances. Respondent is ordered to pay Petitioner’s attorney \$997.25 as and for discovery sanctions. This amount may be paid in one lump sum or in monthly increments of \$55.40 commencing on September 1, 2026, and continuing on the 1st of each month until paid in full (approximately 18 months). If any payment is missed or late the entire amount shall become immediately due and payable.

On August 25, 2026, the court held an evidentiary hearing on Petitioner’s contempt citation. Petitioner’s January 26, 2026 RFO for sanctions was trailing the contempt proceedings. The court ruled on the contempt and continued the RFO for sanctions to August 27, 2026. Given the court’s ruling on the discovery requests, the court finds good cause to set a review hearing and continue the sanctions request to join. The court sets a review hearing on compliance with discovery and on the January 26th RFO for sanctions on Thursday, October 29th at 8:30 AM in Department 5. Parties are directed to have current Income and Expense Declarations filed at least 10 days prior to the hearing. Any supplemental declarations are also due at least 10 days prior to the hearing. The court continues to reserve jurisdiction on Petitioner’s request for Family Code section 271 sanctions.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: RESPONDENT IS ORDERED TO SERVE FULL AND COMPLETE VERIFIED RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS (SET ONE), WITHOUT OBJECTIONS, NO LATER THAN SEPTEMBER 7, 2026.

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RESPONDENT IS ORDERED TO PAY PETITIONER'S ATTORNEY \$997.25 AS AND FOR DISCOVERY SANCTIONS. THIS AMOUNT MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$55.40 COMMENCING ON SEPTEMBER 1, 2026 AND CONTINUING ON THE 1ST OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 18 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

ON AUGUST 25, 2026, THE COURT HELD AN EVIDENTIARY HEARING ON PETITIONER'S CONTEMPT CITATION. PETITIONER'S JANUARY 26, 2026 RFO FOR SANCTIONS WAS TRAILING THE CONTEMPT PROCEEDINGS. THE COURT RULED ON THE CONTEMPT AND CONTINUED THE RFO FOR SANCTIONS TO AUGUST 27, 2026. GIVEN THE COURT'S RULING ON THE DISCOVERY REQUESTS, THE COURT FINDS GOOD CAUSE TO SET A REVIEW HEARING AND CONTINUE THE SANCTIONS REQUEST TO JOIN. THE COURT SETS A REVIEW HEARING ON COMPLIANCE WITH DISCOVERY AND ON THE JANUARY 26TH RFO FOR SANCTIONS ON THURSDAY, OCTOBER 29TH AT 8:30 AM IN DEPARTMENT 5. PARTIES ARE DIRECT TO HAVE CURRENT INCOME AND EXPENSE DECLARATIONS FILED AT LEAST 10 DAYS PRIOR TO THE HEARING. ANY SUPPLEMENTAL DECLARATIONS ARE ALSO DUE AT LEAST 10 DAYS PRIOR TO THE HEARING. THE COURT CONTINUES TO RESERVE JURISDICTION ON PETITIONER'S REQUEST FOR FAMILY CODE SECTION 271 SANCTIONS.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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6. ISRAEL MENDOZA V. ENEIDA MENDOZA

PFL20210121

On June 4, 2026, Respondent filed a Request for Order (RFO) seeking child custody orders. There is no Proof of Service for this document therefore the RFO is dropped from calendar.

On June 30, 2026, Petitioner filed an RFO seeking orders regarding a co-parenting therapist and sanctions. All required documents were served by mail on July 3rd, however this is a post-judgment request and therefore service was required to comply with Family Code § 215. This matter is dropped from calendar due to lack of proper service.

TENTATIVE RULING #6: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.